

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Greg Finch	Team: Squad #09	CCRB Case #: 201907670	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 08/18/2019 10:55 PM	Location of Incident: Northwest corner of Kingsland Avenue and Boston Road	18 Mo. SOL 10/5/2021	Precinct: 47		
Date/Time CV Reported Mon, 08/19/2019 12:25 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/28/2019 11:08 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Matthew Lieberman	01628	950751	047 PCT
2. POM John Noonan	12863	956132	047 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM William Sutton	09820	957197	047 PCT
2. POM Giuseppe Gentile	09948	952773	047 PCT
3. POM Derrick Viruet	12532	956321	047 PCT
4. POM Alexis Melo	21165	963161	047 PCT
5. POM Rashawn Merrick	21166	963164	047 PCT
6. POM Daniel Collazo	21266	962988	047 PCT
7. POM James Cook	13507	966001	047 PCT
8. POM Josue Batista	21940	962943	047 PCT
9. POM Mark Tooma	06338	964807	047 PCT
10. POF Jeannette Lopez	862	955087	047 PCT
11. POM Eric Delacruz	03232	964481	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Matthew Lieberman	Abuse: Sergeant Matthew Lieberman arrested § 87(2)(b)	A . Substantiated
B . SGT Matthew Lieberman	Discourtesy: Sergeant Matthew Lieberman acted discourteously toward § 87(2)(b)	B . Substantiated
C . SGT Matthew Lieberman	Abuse: Sergeant Matthew Lieberman damaged § 87(2)(b) property.	C . Substantiated
D . An officer	Force: An officer used physical force against § 87(2)(b)	D . Officer(s) Unidentified
§ 87(2)(g), § 87(4-b)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On August 19, 2019, Sgt. Lieberman filed this complaint on behalf of § 87(2)(b) as a Level 2 use of force incident, generating log § 87(2)(b). On August 28, 2019, the CCRB received the case.

On August 18, 2019, at approximately 10:55 p.m., § 87(2)(b) and his girlfriend, § 87(2)(b) were doing laundry at Clean Rite Laundromat located at Kingsland Avenue and Boston Road in the Bronx, when they observed the arrest of § 87(2)(b). § 87(2)(b) told officers on scene multiple times to “suck a dick.” Eventually, § 87(2)(b) crossed the street and officers followed him, placing him under arrest for resisting arrest and obstructing governmental administration (**Allegation A: Abuse of Authority-Retaliatory arrest, substantiated**). Sergeant Matthew Lieberman of the 47th Precinct pulled § 87(2)(b) shirt over his head, damaging his shirt. (**Allegation B: Discourtesy- Action, substantiated**) (**Allegation C: Abuse of Authority-Property damage, substantiated**) After being handcuffed, an officer allegedly pushed § 87(2)(b) down to the ground. (**Allegation D: Force- Physical Force, officer unidentified**) § 87(2)(g), § 87(4-b)

BWC footage was obtained for this incident (Board Review 01).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Matthew Lieberman arrested § 87(2)(b)

§ 87(2)(b) stated he was at the laundromat when he observed and began recording the arrest of § 87(2)(b) outside. § 87(2)(b) was not familiar with § 87(2)(b) prior to this incident. § 87(2)(b) alleged that he was arrested because he told Sergeant Lieberman to “suck a dick.”

The narrative of § 87(2)(b) arrest report notes that § 87(2)(b) obstructed pedestrian traffic on a public sidewalk while officers were affecting a separate arrest and § 87(2)(b) refused to disperse after numerous lawful orders. § 87(2)(b) then stated “suck my dick” to officers and § 87(2)(b) was placed under arrest (Board Review 02).

The ISAR states that as § 87(2)(b) was being placed under arrest, a large group of civilians formed and began screaming and cursing at the officers. As the officers began to disperse the crowd, § 87(2)(b) began cursing at the officers, stating multiple times, “Suck my dick.” After several verbal commands to leave the immediate vicinity of the arrest, Officers Sutton and Noonan approached § 87(2)(b) giving him one final order to disperse and when he refused, he was arrested. (Board Review 03)

Sergeant Lieberman stated to the CCRB that after § 87(2)(b) was placed in handcuffs, Sergeant Lieberman stood on the sidewalk with § 87(2)(b) surrounded by multiple officers. § 87(2)(b) approached them from the middle of the road and began screaming obscenities at Sergeant Lieberman. Sergeant Lieberman told § 87(2)(b) “If you scream one more time, you’ll be under arrest.” § 87(2)(b) responded by telling Sergeant Lieberman, “Suck my dick.” Sergeant Lieberman ordered that § 87(2)(b) be placed under arrest for disorderly conduct.

At 12 seconds into PO Chen’s second BWC video (Board Review 04), § 87(2)(b) and § 87(2)(b) are standing on the sidewalk observing § 87(2)(b) arrest from a distance. The sidewalk is otherwise empty. § 87(2)(b) begins to tell § 87(2)(b) not to say anything to the police. An officer tells § 87(2)(b) and § 87(2)(b) that they are having an investigation. As the officers continue to approach, § 87(2)(b) grabs § 87(2)(b) arm and they both step back. § 87(2)(b) states that they are nowhere near § 87(2)(b). The officer replies, “Okay, but we’re having an investigation here right now.” § 87(2)(b) states that the scene is not a crime scene and tells the officers to stop talking to him. An officer tells § 87(2)(b) that he is being recorded and § 87(2)(b) replies that he “does not give a fuck.” He continues stating, “Fuck you. Stop talking to me. Eat a dick.” Sergeant Lieberman begins to approach § 87(2)(b) and § 87(2)(b) states, “What’s this little faggot ass

nigga walking up for?” § 87(2)(b) then walks away from the officers and stands on the corner. There are approximately two other individuals standing on the corner. The sidewalk is otherwise empty.

At 3:00 into PO Derrick Viruet’s BWC footage (Board Review 05), § 87(2)(b) and § 87(2)(b) can be seen standing on the sidewalk on the corner. § 87(2)(b) is observing the scene and § 87(2)(b) is speaking to an officer. The sidewalk is otherwise empty. § 87(2)(b) steps back as the officers approach with § 87(2)(b). The officers place § 87(2)(b) in the police vehicle.

At 1:07 into PO Chen’s second BWC video (Board Review 04), PO Chen approaches § 87(2)(b) and tells him to back up. § 87(2)(b) briefly raises his hand and steps back, accidentally bumping into another officer who is walking in the opposite direction. There is a second black male, standing closer to the corner and the police vehicle, who PO Chen also instructs to back up. Officers are then seen placing § 87(2)(b) in the police vehicle.

At 5:00 into PO Giuseppe Gentile’s first BWC video (Board Review 06), officers are seen placing § 87(2)(b) into the police vehicle. PO Gentile turns around and § 87(2)(b) is seen standing at least ten feet away on the sidewalk. § 87(2)(b) begins to walk across the street and points at an officer and states, “This nigga right here.” PO Gentile says, “Fuck out of here bro. Fuck out of here.” Another officer is heard saying, “Ayo my man, don’t start.” The recording ends.

PO Eric Delacruz’s first BWC video (Board Review 07) begins with no audio but shows § 87(2)(b) standing on the corner as he begins to walk across the street. It is unknown what he says but a group of officers begin to follow him across the street. At 42 seconds, § 87(2)(b) is seen across the street in front of the laundromat still walking away with the officers following him. § 87(2)(b) places his hands in the air and the officers begin to grab him.

PO Rashawn Merrick’s BWC video (Board Review 08) begins with no audio but shows a closer angle of officers pursuing § 87(2)(b). § 87(2)(b) stops, places his hands in the air, and then officers grab him.

PO William Sutton’s first BWC video (Board Review 09) captures another angle at 30 seconds. An officer is heard saying, “We’re right here” and “That’s what I thought.” § 87(2)(b) arms are in the air. An officer says, “No problem” as the officers begin to grab § 87(2)(b). The full conversation cannot be heard.

PO Noonan did not activate his BWC until during the arrest of § 87(2)(b).

Sergeant Lieberman did not activate his BWC (see allegation E).

NYS Penal Law 195.05 (Board Review 10) states, a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act, or by means of interfering, whether or not physical force is involved, with radio, telephone, television or other telecommunications systems owned or operated by the state, or a county, city, town, village, fire district or emergency medical service or by means of releasing a dangerous animal under circumstances evincing the actor’s intent that the animal obstruct governmental administration.

NYS Penal Law 240.20 (Board Review 11) states, a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof:

1. He engages in fighting or in violent, tumultuous or threatening behavior; or
2. He makes unreasonable noise; or
3. In a public place, he uses abusive or obscene language, or makes an obscene gesture; or
4. Without lawful authority, he disturbs any lawful assembly or meeting of persons; or
5. He obstructs vehicular or pedestrian traffic; or
6. He congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse; or

7. He creates a hazardous or physically offensive condition by any act which serves no legitimate purpose.

§ 87(2)(g)

BWC footage shows that § 87(2)(b) never refused to disperse and had begun to walk away from the officers and had crossed the street at the time of his arrest and that it was the officers who pursued him.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegation A** be substantiated.

Allegation (B) Discourtesy: Sergeant Matthew Lieberman acted discourteously toward

§ 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Matthew Lieberman damaged § 87(2)(b) property.

§ 87(2)(b) stated that as officers went to arrest him, Sergeant Lieberman immediately grabbed his shirt and placed it over his head, tearing a hole in his shirt. § 87(2)(b) denied spitting at an officer.

Sergeant Lieberman stated that after § 87(2)(b) was placed in handcuffs, he began to spit at the officers; at which point, Sergeant Lieberman pulled his shirt over his head as a makeshift spitguard.

PO Sutton stated § 87(2)(b) made a “hocking” noise as if he was about to spit on one of the officers; at which point, Sergeant Lieberman put § 87(2)(b) shirt over his head. He clarified that § 87(2)(b) did not spit at an officer. PO Noonan’s statement was generally consistent with PO Sutton’s.

At 1:25 into PO Jeannette Lopez’s first BWC video (Board Review 12), § 87(2)(b) kicks Sergeant Lieberman’s foot.

At 1:00 into PO Alexis Melo’s second BWC video (Board Review 13), Sergeant Lieberman is seen in response to the kick, grabbing § 87(2)(b) by the neck of his shirt. The camera turns briefly and when it turns back, Sergeant Lieberman is seen placing the shirt over § 87(2)(b) head. There is no indication that § 87(2)(b) spit at anyone or attempted to. No “hocking” noise is heard.

At 7:50 into PO Delacruz’s second BWC video (Board Review 14), a hole can be seen on the neck of § 87(2)(b) shirt.

Patrol Guide Procedure 200-02 (Board Review 15) states, the Department is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect.

BWC footage shows that Sergeant Lieberman initially grabbed § 87(2)(b) shirt at its neck out of retaliation for § 87(2)(b) kicking his foot. § 87(2)(g)

BWC footage also revealed a hole in § 87(2)(b) shirt at the neck of the shirt, where

Sergeant Lieberman grabbed him. It is therefore recommended that **allegations B and C** be **substantiated**.

Allegation (D) Force: An officer used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after he was placed in handcuffs, an officer pushed his body down towards the ground by pressing the back of his right knee, causing him to fall to his knees. § 87(2)(b) denied fighting the officers or resisting any of the officers' actions. § 87(2)(b) denied spitting at any officer. § 87(2)(b) denied attempting to kick any officer.

§ 87(2)(b) stated that § 87(2)(b) fell to his knees as he was walking in handcuffs but she did not see what caused him to do so.

PO Sutton stated that § 87(2)(b) went limp, falling to the ground. He denied that he or any officer pushed § 87(2)(b) to the ground. Sergeant Lieberman's statement was generally consistent with PO Sutton's.

PO Noonan did not recall this portion of the incident.

BWC footage from multiple officers capture a struggle between § 87(2)(b) and the officers after the shirt is placed over his head. § 87(2)(b) can be seen on the ground after he is in handcuffs; however, due to the movement of the cameras, it is unclear what caused him to fall to the ground (Board Review 01).

§ 87(2)(g)

§ 87(2)(g) it is recommended that **allegation D** be closed as **officer unidentified**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 16).
- Sgt. Lieberman has been a member-of-service for 10 years and has been a subject in three CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined mediation.
- As of October 1, 2020, the NYC Comptroller's Office has no record of a Notice of Claim being filed in regard to this complaint (Board Review 17).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 9

Investigator: _____
Signature Print Title & Name Date

Squad Leader: Monique West IM Monique West 8/18/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date